

Limited Source Justification – TACOM/SAMD, FMS Tecmotiv Tank Engines

**General Services Administration
Federal Acquisition Service (FAS), General Supplies and Services (GSS),
Assisted Contracting Branch B**

LIMITED SOURCE JUSTIFICATION (LSJ)

**I. IDENTIFICATION OF THE AGENCY AND CONTRACTING ACTIVITY, AND
SPECIFIC IDENTIFICATION OF THE DOCUMENT AS A LIMITED SOURCE
JUSTIFICATION:**

Contracting Activity:	General Services Administration (GSA) Federal Acquisition Service (FAS) Assisted Contracting Branch B 819 Taylor St., Fort Worth, TX 76102
Requiring Activity and Address:	United States Army, Tank Automotive and Armaments Command (TACOM) Security Assistance Management Directorate (SAMD) AMTA-MSS-E Detroit Arsenal, MI 48397-5000
GSA's Acquisition PIID:	47QSWC25K0011
Description of Requirement:	Tecmotiv Engines (AVDS 1790-2CA) and Spare Parts
Procurement Vehicle:	Multiple Award Schedule (MAS)
Contractor's Name: And MAS Contract Number:	Federal Resources Supply Company, LLC GS-07F-9287S
Primary North American Industry Classification System (NAICS) code and Title:	336992, titled: Military Armored Vehicle, Tank and Tank Component Manufacturing
GSA Category:	336992, titled: Non-Tactical Armored Vehicles and Vehicle Armoring Services
Federal Supply Code (FSC) and Title:	2541, titled: Weapons Systems Specific Vehicular Accessories
Estimated Delivery Days ARO	810 days after receipt of order (ARO), 5 units per/mo, after 180 days ARO.
Estimated Procurement Value:	\$ [REDACTED]

II. NATURE AND/OR DESCRIPTION OF THE ACTION BEING APPROVED:

This action is to request the approval of a single award, firm-fixed price, one-time delivery order, limited source justification (LSJ) under FAR for the procurement of Tecmotiv Engines (AVDS 1790-2CA) and spare parts on behalf of the U.S. Army. This acquisition supports the Government of [REDACTED] Stockpile Reliability Program and directly sustains the M60A3 Battle Tank. These refurbished diesel engines can serve as power sources for various platforms, such as generators or construction equipment.

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The U.S. Army Tank Automotive and Armaments Command (TACOM), Security Assistance Management Directorate (SAMD), located in Detroit Arsenal, Michigan have a fully implemented and funded Foreign Military Sales (FMS) Letter of Offer and Acceptance (LOA) for the Government of [REDACTED], designated as Cases [REDACTED] for the Tecmotiv Engines, part number AVDS 1790-2CA and [REDACTED] (Tecmotiv spare parts) under the Arms Export Control Act (22 U.S.C. Chapter 39) and authority cited under FAR 8.405-6(a)(1)(i)(B) and DFARS 225.7304.

This LSJ serves to support the procurement as a limited one-source award for deliverables manufactured by Tecmotiv solely distributed by Federal Resources Supply Company, LLC (FRSC), both open market and on Schedule. It is anticipated that this delivery order will be awarded against FRSC's Multiple Award Schedule (MAS) contract, GS-07F-016DA (ultimate contract end date December 31, 2025), in accordance with FAR 8.405-6(a)(1)(i)(B), Only One Source is Capable. FRSC has self-certified as a small business under the NAICS selected for this acquisition.

III. A DESCRIPTION OF THE SUPPLIES OR SERVICES REQUIRED TO MEET THE AGENCY'S NEEDS (INCLUDING THE ESTIMATED VALUE):

TACOM has fully implemented and funded the Foreign Military Sales (FMS) Letters of Offer and Acceptance (LOA) for the Government of [REDACTED], designated as Cases [REDACTED] for the Tecmotiv Engines, part number AVDS 1790-2CA and [REDACTED] (Tecmotiv spare parts). The LOAs specify Tecmotiv as the 'Prime Contractor'. Only the specified brand-name part numbers, exclusively distributed FRSC will meet [REDACTED] requirements; no equivalents or alternative products are acceptable.

Line #	Case	Case Line	OEM	Distributor	OEM P/N	Description
0001	[REDACTED]	004	Tecmotiv	FRSC	360011790	Engine Assy, 1790-2CA, W/Container
0002	[REDACTED]	001	Tecmotiv	FRSC	12271067	Hose Assy, Rev A
0003	[REDACTED]	001	Tecmotiv	FRSC	10911305-1	Angle, Fender, Rev D
0004	[REDACTED]	001	Tecmotiv	FRSC	12270499	Cylinder Assy
0005	[REDACTED]	001	Tecmotiv	FRSC	10911305-2	Angle, Fender
0006	[REDACTED]	001	Tecmotiv	FRSC	10873806	Fender, Rev E

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0007		001	Tecmotiv	FRSC	10952211	Bracket Angle Right, Rev A
0008		001	Tecmotiv	FRSC	10940256-1	Extension, Fender
0009		001	Tecmotiv	FRSC	10940272-2	Fender, Vehicular Rh, Rev D
0010		001	Tecmotiv	FRSC	11645792	Shock Absorber, Rev K
0011		001	Tecmotiv	FRSC	11658972	Bracket
0012		001	Tecmotiv	FRSC	10940256-2	Extension, Fender
0013		001	Tecmotiv	FRSC	11676034	Fender, Right, Rev B
0014		001	Tecmotiv	FRSC	10873807	Fender, Rev E
0015		001	Tecmotiv	FRSC	10915603-2	Arm Assy
0016		001	Tecmotiv	FRSC	10940272-1	Fender, Vehicular, Rev J
0017		001	Tecmotiv	FRSC	7364134	Hub, Final Drive, Rev Am
0018		001	Tecmotiv	FRSC	10905983-2	Arm Assy, Right, Rev L
0019		001	Tecmotiv	FRSC	10915603-1	Arm Assy
0020		001	Tecmotiv	FRSC	10905983-1	Arm Assy, Left, Rev L
0021		001	Tecmotiv	FRSC	7013976	Wheel Solid Rubber, Rev J
0022		001	Tecmotiv	FRSC	8762783	Hose, Preformed, Rev E

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Total Estimated Value: [REDACTED]. Funds are non-expiring funds and are available for obligation within FY25.

IV. THE AUTHORITY AND SUPPORTING RATIONALE (SEE 8.405-6(a)(1)(i) AND (b)(1) AND IF APPLICABLE, A DEMONSTRATION OF THE PROPOSED CONTRACTOR'S UNIQUE QUALIFICATIONS TO PROVIDE THE REQUIRED SUPPLY OR SERVICE:

This acquisition will be conducted under the authority of the Multiple Award Schedule (MAS) Program, FAR 8.401. The primary statutory authorities for MAS are Title III of the Federal Property and Administrative Services Act of 1949 (41 U.S.C. §251 et seq.) and Title 40 U.S.C. §501, Services for Executive Agencies.

The United States Government (USG) proposes to sell items to the Government of [REDACTED] through a Letter of Offer and Acceptance (LOA) under Foreign Military Sales (FMS), Case Designators [REDACTED] and [REDACTED], in accordance with the Arms Export Control Act (22 U.S.C. Chapter 39) and the authority cited in FAR 8.405-6(a)(1)(i)(B) and DFARS 225.7304. No alternative products can meet the specific needs of the requesting country.

Under DFARS 225.7304, FMS customers may request brand names or specific contractors for defense articles or services. The LOA designates Tecmotiv as the 'Prime Contractor' for Case Designators [REDACTED] and [REDACTED]. Tecmotiv, via a letter dated December 2, 2024, confirmed FRSC as their exclusive distributor for both open market and Schedule items. The Contracting Officer has verified that the LOA meets the requirements to allow the requesting country to specify brand names and contractors. Accordingly, the Contracting Officer must honor the agreement between the USG and the Government of [REDACTED].

This acquisition will be procured under the MAS Program, GSA Special Item Number (SIN)/Category 336992, titled "Non-Tactical Armored Vehicles and Vehicle Armoring Services." FAR 8.405-6(a)(1)(i)(B) applies, as only one source can provide the required supplies or services at the necessary quality due to their unique or highly specialized nature. Therefore, procurement from a single source is justified based on the requirements specified in the LOA and the authorities in FAR 8.405-6(a)(1)(i)(B) and DFARS 225.7304.

In compliance with FAR 8.405-6(a)(2)(i), this Limited Source Justification (LSJ) will be posted on SAM.gov within 14 days of the award and remain available for at least 30 days.

V. A DETERMINATION BY THE ORDERING ACTIVITY CONTRACTING OFFICER THAT THE ORDER REPRESENTS THE BEST VALUE CONSISTENT WITH 8.404(d):

A best value determination will be conducted and documented prior to award. Additionally, prior to awarding the delivery order, the Contracting Officer will seek price reductions from FRSC under their MAS contract, GS-07F-9287S in accordance with FAR 8.405-4. Any quote submitted by FRSC will be reviewed to ensure pricing and terms are in accordance with their MAS contract.

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In accordance with FAR 8.404(d) Pricing, GSA has already determined the prices of the supplies and fixed-price services under Schedule contracts to be fair and reasonable. However, the Department of Defense (DoD) has issued Class Deviation 2014-00011, dated March 13, 2014, whereby the Contracting Officer is responsible for making a determination of fair and reasonable pricing for orders/BPAs using the proposal analysis technique outlined in FAR 15.404-1. Because this requirement is one-source, the USG will be utilizing at least two (2) methods by which to determine pricing submitted by FRSC to be fair and reasonable. These techniques include, but not limited to the following:

- Requesting recent commercial and Government sales history
- Direct competitive pricing comparisons
- Making indirect pricing comparisons to:
 - the same or similar items in the marketplace,
 - competitive published price lists, and
 - Independent Government Estimates.

VI. A DESCRIPTION OF MARKET RESEARCH CONDUCTED AMONG SCHEDULE HOLDERS AND THE RESULTS OR A STATEMENT OF THE REASON MARKET RESEARCH WAS NOT CONDUCTED:

Market research was conducted in accordance with FAR Part 10 to determine the availability of products or vendors capable of meeting the USG's requirement. Market research revealed the Tecmotiv Engines (AVDS 1790-2CA) and spare parts were not available through AbilityOne, UNICOR, Green Procurement Compilation websites or through the Interagency Contract Directory Portal. Market research did reveal the required Tecmotiv Engines (AVDS 1790-2CA) and spare parts were available on GSA Advantage! website under FRSC's MAS contract, GS-07F-9287S.

On December 2, 2024, a Tecmotiv representative affirmed that FRSC is their exclusive distributor for both open market and Schedule items for the required items. Tecmotiv does not have any existing distributorship agreements for the listed items with any other parties. Therefore, FRSC is the only contractor capable of meeting the USG's needs.

VII. ANY OTHER FACTS SUPPORTING THE JUSTIFICATION:

Utilizing the GSA Schedules Program to procure products and services complies with Acquisition Alert AA-2014-07 and directly supports the Office of Management and Budget (OMB) goal of reducing duplicative contracting in the federal government. By leveraging pre-negotiated contracts and streamlining the procurement process, the GSA Schedules Program enables agencies to save time and resources while ensuring compliance with the Federal Acquisition Regulation (FAR). This approach promotes strategic sourcing and enhances efficiency, aligning with OMB's broader efforts to optimize government-wide acquisition strategies.

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VIII. A STATEMENT OF THE ACTIONS, IF ANY, THE AGENCY MAY TAKE TO REMOVE OR OVERCOME ANY BARRIERS THAT LED TO THE RESTRICTED CONSIDERATION BEFORE ANY SUBSEQUENT ACQUISITION FOR THE SUPPLIES OR SERVICES IS MADE:

As outlined in the LOA, Tecmotiv is the sole brand, and FRSC is the only source capable of meeting the Government of [REDACTED] requirements. Until it is determined that these items no longer satisfy the terms of the LOA between the U.S. Army and the Government of [REDACTED] procurement must continue as specified with the designated brand name through FRSC.

To ensure compliance with the LOA and address evolving requirements, TACOM will actively evaluate potential vendors through ongoing market research and assess the changing needs of both the U.S. Army and the Government of [REDACTED]. These efforts aim to identify the most efficient and cost-effective providers when feasible.

The U.S. Government will also continue to search for potential sources of supply, leveraging online resources and other methods.

TECHNICAL/REQUIREMENTS CERTIFICATION:

I certify that the facts and presentations under my cognizance, which forms a basis for this justification and its supporting acquisition planning documents, except as noted herein are complete and accurate to the best of my knowledge.

[REDACTED] [REDACTED] [REDACTED]
[REDACTED] _____ Date
Egypt Senior Case Manager
TACOM SAMD AMTA-MSS-E

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CONTRACTING OFFICER CERTIFICATION AND APPROVAL:

The contracting officer has determined that the appropriate actions taken under this acquisition meet the conditions described in FAR 8.405-6(a)(1)(i)(B). The information contained in this justification is accurate and complete to the best of the Contracting Officer’s knowledge and belief.

DocuSigned by:
[Redacted Signature]
[Redacted Signature]
Date
Contracting Officer, Assisted Contracting Branch B (QSCBCA)

APPROVALS:

DocuSigned by:
[Redacted Signature]
[Redacted Signature]
Date
Branch Chief, Assisted Contracting Branch B (QSCBC)

DocuSigned by:
[Redacted Signature]
[Redacted Signature]
Date
Director, Special and Assisted Contracting Division (QSC)

Signed by:
[Redacted Signature]
[Redacted Signature]
Date
Operational Guidance Branch SME (QSA)

DocuSigned by:
[Redacted Signature]
[Redacted Signature]
Date
Assistant Regional Counsel (LD7)

DocuSigned by:
[Redacted Signature]
[Redacted Signature]
Date
Competition Advocate (QSA)

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APPROVAL AUTHORITY CERTIFICATION

I, the approving authority, determine that the circumstances identified in this document are accurate; therefore, limiting competition to one source under FAR 8.405-6(a)(1)(i)(B) is justified. The signature below also represents approval of this Justification and Approval.

DocuSigned by:

[Redacted Signature]

Date

Contracting Executive (QSC), Delegated HCA Authority